Consumer Protection Forums & Human Rights Charter

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Introduction

Consumer protection includes:

- Ensuring **basic consumer rights**.
- Formation of **consumer organizations** to promote awareness.
- Support from **government bodies** and **self-regulatory business organizations**.

Types of Human Rights

Social, Economic, and Cultural Rights

- **Social Rights:** Enable full participation in society.
- **Economic Rights:** Ensure conditions that allow people to meet their basic needs.
- **Cultural Rights:** Ensure access to and enjoyment of cultural life, without discrimination.

Civil and Political Rights

- **Civil Rights:** Basic legal protections regardless of race, nationality, color, gender, age, religion, etc.
- **Political Rights:** Empower citizens to participate in government directly or indirectly.

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Director,

Department of Employment and Training.

Consumer Disputes Redressal Commissions – 3-Tier Structure:

1. District Commission

- **Establishment:** By State Govt; 1+ per district
- **Composition:** President + ≥2 members
- **Jurisdiction:**
  - **Pecuniary:** ≤ ₹1 crore (revised to ₹50 lakhs in 2021)
- **Appeals:** To State Commission (within 45 days)
- **Review:** Within 30 days for apparent errors
- **Vacancies:** State govt may assign another District Commission
- **Location:** District HQ & notified places

2. State Commission

- **Establishment:** By State Govt
- **Composition:** President + ≥4 members (in consultation with Central Govt)
- **Jurisdiction:**
  - **Pecuniary:** > ₹1 crore to ₹10 crore (revised to ₹50 lakh–₹2 crore in 2021)
  - **Appellate:** Against District Commission orders (within 45 days)
  - **Revisional:** If District Commission misused/jurisdiction
- **Review:** Apparent errors
- **Transfer:** Between District Commissions in-state
- **Administrative Control:** Over District Commissions

3. National Commission

- **Establishment:** By Central Govt
- **Composition:**
  - President + 4–11 members (≥1 woman)
- **Appointment:**
  - By Central Govt, on recommendation of a selection committee (headed by SC Judge nominated by CJI)
  - Minimum age: 50 years
- **Tenure:**
  - 4 years or until age 70 (President)/67 (Members)
- **Salary & Terms:**
  - Rules by Central Govt
  - No adverse changes post-appointment

- **Jurisdiction:**
  - **Pecuniary:** > ₹10 crore (revised to > ₹2 crore in 2021)
  - **Appellate:** Against State Commission & CCPA orders (within 30 days)
  - **Revisional:** Against illegal/irregular State Commission orders
- **Other Powers:**
  - Review orders (apparent errors)
  - Set aside ex-parte orders
  - Transfer between State/District Commissions across states
- **Appeal:** Lies with Supreme Court (within 30 days)
- **Administrative Control:**
  - Over State Commissions

Performance review, inspections, uniform procedures

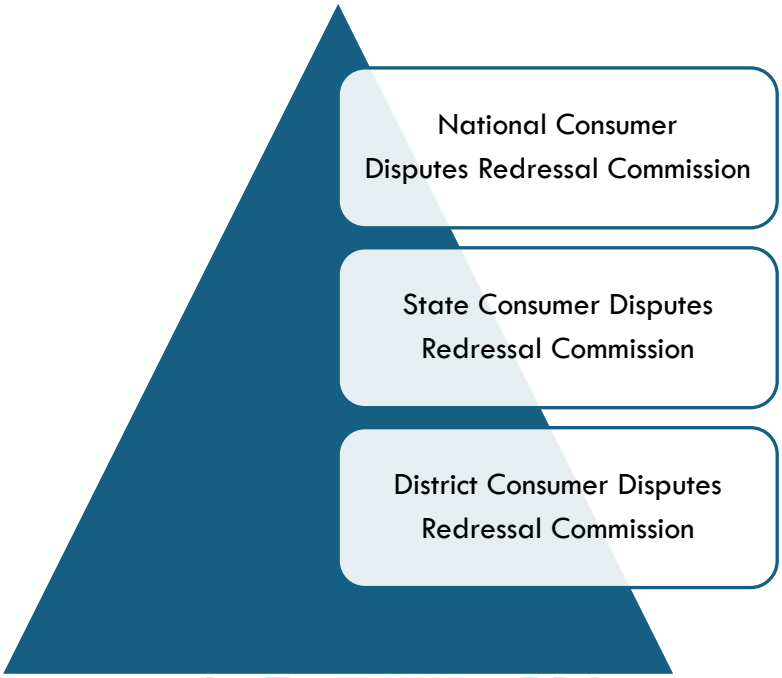
Central Consumer Protection Authority (CCPA)

Establishment: From 24 July 2020
Headquarters: NCR Delhi (can have regional offices)
Composition: Chief Commissioner + other Commissioners
Functions:
Regulate consumer rights violations
Address unfair trade practices, misleading ads
Promote & enforce consumer rights

Eight Basic Consumer Rights

1. **Right to Safety**
2. **Right to be Informed**
3. **Right to Choose**
4. **Right to be Heard**
5. **Right to Redressal**
6. **Right to Consumer Education**
7. **Right to Healthy Environment**
8. **Right to Protect Against Unfair Trade**

Consumer Disputes Redressal Agencies



Feature	Consumer Protection Act, 1986	Consumer Protection Act, 2019
Year Enacted	1986	August 2019
Came into Force	December 24, 1986	July 20, 2020
Nicknamed As	"Magna Carta" of consumer rights in India	N/A
Applicability	Traditional marketplaces	Includes e-commerce, direct selling, teleshopping, etc.
Consumer Protection Councils	Established at National, State, and District levels	Continues; with stronger enforcement bodies
Filing Complaints	Physical filing only	E-filing and video-conferencing enabled
Pecuniary Jurisdiction	Not updated for inflation or online economy	District: ≤ ₹1 croreState: ₹1–10 croreNational: > ₹10 crore
New Authority Introduced	None	Central Consumer Protection Authority (CCPA)

Feature	Consumer Protection Act, 1986	Consumer Protection Act, 2019
CCPA Powers	N/A	Investigates unfair trade, false ads, rights violations
Penalties (Misleading Ads)	Not defined explicitly	₹10 lakh fine or 2 years imprisonment (1st offence)
Penalties (Repeat Offences)	N/A	Up to ₹50 lakh fine and 5 years imprisonment
Ban on Endorsers	Not applicable	1-year ban (1st offence); 3 years (repeat offence)
Special Observance	December 24 as National Consumer Day	Continues

Human Rights

What Are Human Rights?

- Defined by the UNO as:
  "The rights inherent to all human beings, regardless of race, gender, nationality, ethnicity, language, religion or any other status. Everyone is entitled to these rights without discrimination."
- Adopted by the United Nations General Assembly as the **Universal Declaration of Human Rights (UDHR)** on **10 December 1948** (General Assembly Resolution 217 A).
- **Human Rights Day** is observed every year on **10th December.**

Human Rights in the UDHR

- 30 Articles in total.
- Guarantees:
  - **Freedom of expression**
  - **Civil rights**
  - **Political rights**
  - **Social rights**
  - **Economic rights**
  - **Cultural rights**

Comparison: NHRC vs SHRC

Category	NHRC (National Human Rights Commission)	SHRC (State Human Rights Commission)
Established Under	Protection of Human Rights Act, 1993	Protection of Human Rights Act, 1993
Type	Statutory, Non-constitutional	Statutory, Non-constitutional
Jurisdiction	Whole of India (except Jammu & Kashmir before 2019)	Concerned State only
Chairperson	Retired Chief Justice of Supreme Court	Retired Chief Justice of High Court
Members	4 Members: • 1 SC Judge • 1 HC CJ • 2 with HR expertise	2 Members • 1 HC Judge or Dist. Judge (7 yrs exp.) • 1 HR expert
Ex-Officio Members	Chairpersons of: • National Commission for SCs • STs • Women • Minorities	None
Appointment Authority	President of India	Governor of the State
Appointment Committee	PM (Head), Speaker of LS, Home Minister, LOP in LS & RS, Dy. Chairman of RS	CM (Head), Speaker of LA, State Home Minister, LOP
Term	5 years or 70 years of age (whichever earlier)	5 years or 70 years of age (whichever earlier)
Reappointment	Not eligible for further employment	Not eligible for further employment
Removal Authority	President of India	President of India
Removal Grounds	- Insolvency- Engaged in paid employment- Unsound mind- Conviction- Proved misbehavior (with SC inquiry)	Same as NHRC

Category	NHRC (National Human Rights Commission)	SHRC (State Human Rights Commission)
Functions	- Inquire into HR violations (suo motu, petition, or court order)- Jail visits- Recommend reforms- Promote HR awareness- Research	Similar functions within the state jurisdiction
Powers	Civil court powers, Recommendatory only	Civil court powers, Recommendatory only
Human Rights Courts	Established at district level (District Judge with 7+ years experience)	Same provisions as NHRC